

મેસર્સ S.K.S. ઇસ્ટાલ સંડ પૌવર લિમિ.
દ્વારા 1200 મે.વા. થર્મલ પૌવર પ્લાન્ટ
ટેનુ વન ઓપરેશન ડ્રસ્ટાવ

AREA:- 12.938 HA.

Encl:- 1. 1st stage approval letter
24/09/2014
2. 2nd stage approval letter
06/07/2015



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS
& CLIMATE CHANGE

क्षेत्रीय कार्यालय, पश्चिम क्षेत्र
Regional Office, Western Region
"केन्द्रीय पर्यावरण भवन"

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No.6-CHC 057/2011-BHO/1655

To, The Principal Secretary (Forests),
Govt. of Chhattisgarh,
Forest Department,
Mahanadi Bhawan, Mantralaya,
Raipur (Chhattisgarh).

31.24/09/14

Sub: Diversion of 12.938 ha Revenue Forest land (4.805 ha & 8.133 ha) for installation of Coal based 1200 Megawatt Thermal Power Plant in favour of Director M/s S.K.S. Ispat and Power Limited in Raigarh District of Chhattisgarh.

Sir, I am directed to invite a reference to your letter No. F-5-15/2011/10-2 dated 05/08/2011, CCF & Nodal Officer(LM/FCA) letter No. bhoo-prabandh/viduyat/479-54/808 dated 3/5/2013 and even letter No. 378 dated 14/2/2014 on the above mentioned subject seeking prior approval of the Central Government under Section - 2 of the Forest (Conservation) Act, 1980.

After due consideration of the proposal of the State Government, the undersigned, on behalf of the Central Government, is directed to convey in-principle approval for diversion of 12.938 ha Revenue Forest land (4.805 ha & 8.133 ha) for installation of Coal based 1200 Megawatt Thermal Power Plant in favour of Director M/s S.K.S. Ispat and Power Limited in Raigarh district subject to the following terms and conditions:-

- 1.. Legal status of the forest land shall remain unchanged.
2. Forest land shall be handed over to the User Agency only after the User Agency has got possession of non-forest land, if any, required for the project.
- 3 (a) Compensatory afforestation shall be taken up by the Forest Department over 12.95 ha non-forest land (8.90 ha, Khasra No. 57/2, 58/1, 58/2, 59, 60, 61/1, 61/2, 61/3, 61/4, 61/6, 61/7, 61/10, 61/11, 61/14, 61/16, 61/18, 61/20, 63/3, 108, 109/1, 109/4, 110/1, 110/2, 111/2, 112/1, 112/2, 114/2, 115/2, 117/2, 118/2, 119/2, 124/1, 135/4, 135/7, 137/1, 137/4, 137/6, 137/7, 137/8, 137/10, 137/11, 137/12, 137/13, 137/16, Village- Kharet, Tal- Raigarh and 4.050 ha Survey/Khasra No. 25/8, Village-Kanwarguda, Tal- Raigarh, District-Raigarh) at the cost of the User Agency. As far as practicable a mixture of local indigenous species will be planted and monoculture of a species has to be avoided.
- (b) The non forest land shall be transferred and mutated in favour of Forest Department.
- (c) The non forest land which is transferred and mutated in favour of State Forest Department for the purpose of CA, shall be declared as Reserved Forest under Section-4 or Protected Forest under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act. The Nodal Officer must report compliance within a period of six (6) months from the date of grant of stage-II approval under the Forest (Conservation) Act, 1980 for diversion of the said forest land and send a original notification of RF/PF as the case shall be to the Central Government for confirmation and record.

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- (d) The land identified for the purpose of CA shall be clearly depicted on a Survey of India Toposheet of 1:50, 000. The bearing of each corner point and distances between successive points will be recorded alongwith GPS reading of Geo-Coordinates (Latitudes & Longitudes).
- 4.. The cost of compensatory afforestation at the prevailing wage rates as per compensatory afforestation scheme and the cost of survey, demarcation and erection of permanent pillars on the CA land shall be deposited in advance with the Forest Department by the project authority. The CA will maintained for 10 years. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years.
5. (a) The State Government shall charge the Net Present Value(NPV) for the 12.938 ha forest area to be diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 30.10.2002, 01.08.2003, 28.03.2008, 24/04/2008 and 09.05.2008 in IA No. 566 in WP (C) No. 202/1995 and as per the guidelines issued by the Ministry vide letters No. 5-1/1998-FC (Pt.II) dated 18.09.2003, as well as letter No. 5-2/2006-FC dated 03/10/2006 and 5-3/2007-FC dated 05/02/2009 in this regard.
- (b) Additional amount of the NPV of the diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged by the State Government from the User Agency. The User Agency shall furnish an undertaking to this effect.
- 6.. All the funds received from the user agency under the project shall be transferred to the Ad-hoc Compensatory Afforestation Fund Management & Planning Agency(CAMPA) in Saving Bank A/c No. SB01025203 of Corporation Bank, Lodhi Complex, New Delhi- 110003.
7. The User Agency will defray the cost of removal of 592 trees that fall in the area proposed for diversion. However only the required and minimum number of trees will be felled and the trees shall be felled under strict supervision of the State Forest Department.
- 8 The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of the user agency or the project life, whichever is less.
9. Rehabilitation of affected families shall be taken up at the cost of User Agency as per the approved Rehabilitation programme by the Competent Authority in accordance with Rehabilitation Policy of the State/ Central Government.
10. User agency shall obtain the Environmental Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required.
11. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
12. Relevant directions contained in various notifications issued by the Central Government under the provisions of the Environment (Protection) Act, 1986 and Environment (Protection) Rules, 1986 made there under and amended from time to time regarding use of fly ash shall be fully complied with.
13. Muck disposal, if required, shall be taken up as per the scheme approved by the Forest Department.

Signature
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14. Soil conservation measures, if required, shall be taken up by the user agency.
15. No labour camp shall be established on the forest land.
16. a) Proposed labour camps outside the forest area, are to be dismantled and removed. The labourers shall be sent back immediately after the completion of the work.
b) User Agency shall provide fuel preferably alternate fuel to the labourers to avoid pressure and damage to flora.
17. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar.
18. The User Agency shall ensure that because of this project, no damage is caused to the Wildlife.
19. No additional or new path will be constructed inside the forest area for transportation of construction materials for execution of the project work.
20. It will be the responsibility of the User Agency to ensure that the labourers and staff engaged in construction activity do not damage nearby forest flora and fauna.
21. a) The forest land shall not be used for any purpose other than that specified in the project proposal.
b) The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Central Government.
22. Any other condition that the Ministry of Environment & Forests may stipulate from time to time in the interest of conservation, protection and development of forests & wildlife.
23. a) The User Agency shall submit six monthly compliance report as on 1st January and 1st July of every year to this office as well as to the Nodal Officer of the State.
b) The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year.
24. The User Agency and the State Government shall ensure compliance of provisions of the all Acts, rules, regulations and guidelines for the time being in force as applicable to the project.

After receipt of compliance report on fulfilment of the condition Nos 3(b), 4, 5, 6 and 7 from the State Government, proposal will be considered for final approval under Section - 2 of the Forest (Conservation) Act, 1980 by this office.

The order for transfer of forest land to user agency shall not be issued by the State Government till formal approval order for diversion of forest land is issued by this office.

Yours faithfully,

[Signature]
5/09/14

(S.K. Bhandari)
Chief Conservator of Forests (Central)

Contd...4.

Copy to :-

1. The Director (ROHQ), Govt. of India, Ministry of Environment and Forests and Climate Change, Agni, C-wing, 3rd Floor, Indira Paryavaran Bhawan, Jor Bagh Road, Aliganj, New Delhi - 110003.
- ✓ 2. The Addl. Principal Chief Conservator of Forests (LM/FCA), O/o Principal Chief Conservator of Forests, Forest Department, Chhattisgarh, Aranya Bhavan, Medical College Road, Raipur, Chhattisgarh.
3. The Divisional Forest Officer, Raigarh Forest Division, District-Raigarh, Chhattisgarh.
4. The Executive Director, M/s S.K.S Power Generation (Chhattisgarh) Limited, Krishna Kunj, 6/7/24, Near Central Bank, Civil Line, Raipur, Chhattisgarh.
5. Order file


(S.K. Bhandari)
Chief Conservator of Forests (Central)
Lg 09/14



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS
& CLIMATE CHANGE

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
E-mail: moefregionalofficenagpur@gmail.com

F.No. 6-CHC-57/2011-BHO/141

Date: 06/07/2015.

To, The Principal Secretary,
Govt. of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 12,938 ha forest land (4.805 ha and 8.133 ha) for installation of coal based 1200 MW Thermal Power Plant in favour of Director, M/s S.K.S. Ispat and Power Ltd., in Raigarh District of Chhattisgarh.

Ref. 1) This office letter No. 6-CHC-57/2011-BHO/530 dated 24/09/2014.
2) Govt. of Chhattisgarh letter No.F-5-15/2011/10-2 dated 05/08/2011.
3) Office on Special Duty (Ad-hoc CAMPA) MoEF, New Delhi letter no. 1-12/2013-CAMPA dated 06/07/2015.

Sir,

I am directed to invite a reference to your letter No.F-5-15/2011/10-2 dated 05/08/2011 on the above mentioned subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980.

The Central Government vide letter (1) referred above had agreed in-principle for diversion of the above forest land for the purpose mentioned, subject to the fulfilment of conditions No. 3(b),4,5, 6 & 7 stipulated therein.

The State Government vide letter (2) referred above reported compliance on the fulfilment of the said conditions.

Therefore the undersigned is hereby directed to convey formal approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 for diversion of 12,938 ha forest land (4.805 ha and 8.133 ha) for installation of coal based 1200 MW Thermal Power Plant in favour of Director, M/s S.K.S. Ispat and Power Ltd., in Raigarh District of Chhattisgarh subject to the following terms and conditions:-

1. Legal status of the forest land shall remain unchanged.
2. Forest land shall be handed over to the User Agency only after the User Agency has got possession of non-forest land, if any, required for the project.
3. a) Compensatory Afforestation shall be taken up by the Forest Department over 12.95 ha non-forest land (8.90 ha, Khasra No. 57/2, 58/1, 58/2, 59, 60, 61/1, 61/2, 61/3, 61/4, 61/6, 61/7, 61/10, 61/11, 61/14, 61/16, 61/18, 61/20, 63/3, 108, 109/1, 109/4, 110/1, 110/2, 111/2, 112/1, 112/2, 114/2, 115/2, 117/2, 118/2, 119/2, 124/1, 135/4, 135/7, 137/1, 137/4, 137/6, 137/7, 137/8, 137/10, 137/11, 137/12, 137/13, 137/16, Village- Kharet, Tal- Raigarh and 4.050 ha Survey/ Khasra No. 25/8, Village- Kanwarguda,

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Tal- Raigarh, District Raigarh) at the cost of the User Agency. As far as practicable mixture of local indigenous species will be planted and monoculture of species has to be avoided.

- b) The non-forest land which is transferred and mutated in favour of State Forest Department for the purpose of CA shall be declared as Reserved Forest under Section- 4 or Protected Forest under Section- 29 of the Indian Forest Act, 1927 or under the relevant Section (s) of the Local Forest Act. The Nodal Officer must report Compliance within a period of six (6) months from the date of grant of Stage-II approval under the Forest (Conservation) Act, 1980 for diversion of the said forest land and send a original notification of RF/ PF as the case shall be to the Central Government for Confirmation and record.
- c) The land identified for the purpose of CA shall be clearly depicted on a Survey of India Toposheet of 1:50,000. The bearing of each corner point and distances between two successive points will be recorded alongwith the GPS readings of Geo coordinates (Latitudes & Longitudes).
4. The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of the user agency or the project life, whichever is less.
 5. Rehabilitation of affected families shall be taken up at the cost of User Agency as per the approved Rehabilitation programme by the Competent Authority in accordance with Rehabilitation Policy of the State/ Central Government.
 6. User agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required.
 7. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
 8. Relevant directions contained in various notifications issued by the Central Government under the provisions of the Environment (Protection) Act, 1986 and Environment (Protection) Rules, 1986 made there under and as amended from time to time regarding use of fly ash shall be fully complied with.
 9. Muck disposal, if required, should be taken up as per the scheme approved by the Forest Department.
 10. Soil conservation measures, if required, should be taken up by the User Agency.
 11. No labour camp shall be established on the Forest land.
 12. a) Proposed labour camps outside the forest area, are to be dismantled and removed. The labours shall be sent back immediately after the completion of the work.
b) User Agency shall provide fuel preferably alternate fuel to the labourers to avoid pressure and damage to flora.
 13. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar.
 14. The User Agency shall ensure that because of this project, no damage is caused to the Wildlife.
 15. No additional or new path will be constructed inside the forest area for transportation of construction materials for execution of the project work.

16. It will be the responsibility of the User Agency to ensure that the labourers and staffs engaged in construction activity do not damage nearby forest flora and fauna.
17. a) The forest land shall not be used for any purpose other than that specified in the project proposal.
- b) The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of Central Government.
18. Any other condition that the Ministry of Environment, Forests & Climate Change may stipulate from time to time in the interest of conservation, protection and development of forest and wildlife.
19. a) The User Agency shall submit six monthly compliance reports as on 1st January and 1st July of every year to this office as well as to the Nodal Officer of the State.
- b) The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year.
20. The User Agency and the State Government shall ensure compliance of provisions of the all the Acts, Rules, Regulations and Guidelines for the time being in force as applicable to the project.

Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken accordingly.

The State Government shall ensure compliance of all the above conditions.

Yours faithfully

Kanwarjit Singh
(Kanwarjit Singh) 6/7/15

Addl. Principal Chief Conservator of Forests(C)

Copy to:-

1. The Director (RO HQ), Ministry of Environment, Forests and Climate Change, AGNI, C-Wing, 3rd Floor, Indira Paryavaran Bhawan, Jor Bagh Road, Aliganj, New Delhi-110003.
2. The Addl. Principal Chief Conservator of Forests and Nodal Officer (LM/FCA), O/o Principal Chief Conservator of Forests, Forest Department, Chhattisgarh, Aranya Bhavan, Medical College Road, Raipur (C.G.).
3. The Divisional Forest Officer, Raigarh Forest Division, District- Raigarh (Chhattisgarh).
4. The Executive Director, M/s S.K.S Power generation (Chhattisgarh) Ltd., Krishna Kunj, 6/7/24, Near Central Bank, Civil Lines, Raipur, Chhattisgarh.
5. Order file.

Kanwarjit Singh
(Kanwarjit Singh) 6/7/15

Addl. Principal Chief Conservator of Forests(C)